A. Content of the account

A1 — Detail / richness of detail

Evaluation of the amount, specificity, concreteness, or richness of information in an account. This concerns whether the court considers an account detailed or lacking in detail, either overall or in particular parts.

Boundary conditions:

- Do not infer detail merely because the judgment itself recounts many details. The court must evaluate the level of detail.
- Do not automatically equate detail with length (A2) or clarity (A3).
- If the court evaluates both the level of detail and whether that level of recollection is reasonable under the circumstances, code both A1 and A15 (Memory / Recollection).

Example:

"(…) har lämnat en utförlig och relativt detaljerad berättelse (…)"

A1—Findings:

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Detailed	"detailed"; "statement was detailed"; "utförligt"; "detailed about experience"
Not detailed	"not detailed"; "lack of detail"; "not detailed enough"; "vague"
Partially detailed	"part of it was detailed";
Partially not detailed	"not detailed in parts"; "lack of detail in other places" ; "lack of detail in decisive parts"

A2 — Length / extensiveness

Evaluation of the length or extensiveness of an account as a whole or in particular parts. This concerns whether the court considers an account long, extensive, brief, or short.

Boundary condition:

Do not automatically equate length with richness of detail (A1). An account may be long without being detailed, or short while containing specific details.

Example:

“(…) har lämnat en lång berättelse (…)”

A2—Findings:

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Long	“long”
Short	“short in the central bit”

A3 — Clarity

Evaluation of whether an account is clear, precise, or unclear. This concerns whether the person communicates their account in a manner that is understandable and sufficiently clear.

Boundary conditions:

- Lack of detail is not automatically lack of clarity (A1). An account can be brief or lacking in detail while still being clearly expressed.
- If the account is deemed to be connected and logical code this as A4.

Example:

“Detta gäller särskilt som hon varit mycket tydlig vid redogörelsen för de centrala delarna av händelseförloppet, dvs. vad som hände efter att hon vaknade till igen i sängen.”

A3—Findings:

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Clear	“clear”; “statement was clear”; “tydligt”
Not clear	"otydligt”

A4 — Coherence / logical structure

Evaluation of whether an account forms a coherent, connected, and logically structured narrative. This concerns whether the account is presented in a manner that is understandable and follows a coherent sequence (*sammanhängande/osammanhängande*).

Boundary conditions:

- Code A4 when the court explicitly evaluates whether an account is coherent, connected, or logically structured.
- Do not code A4 when the court evaluates whether an account contains internal contradictions (*motsägelser*). Such assessments belong under A13.
- Differences between accounts given on separate occasions belong under B1 (Consistency across statements / occasions).
- An account may be coherent even if it contains contradictions, and vice versa. If the court explicitly evaluates both coherence and internal contradictions, code both A4 and A13.

Examples:

- “Sekretess X har lämnat en (…) sammanhängande (…) berättelse.”
- “Målsäganden har lämnat en osammanhängande berättelse som varit svår att följa.”
- “Den tilltalades redogörelse har varit logiskt uppbyggd och lätt att följa.”

A4 — Findings

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Coherent	"sammanhängande”; “coherent”; “framstår som logiskt”
Incoherent	“osammanhängande”; “inte lätt att följa”
Partially coherent	“sammanhängande i några delar”
Partially incoherent	"lite osammanhängande, men inte viktikgt för bedömningen”

A5 — Vividness / liveliness

Evaluation of whether an account has a vivid and/or lively quality. This concerns whether the court considers the account to be presented in a vivid, lively, or engaging manner, or notes the absence of these characteristics.

Boundary condition:

Do not infer vividness merely because an account is detailed (A1). The court must evaluate the vivid or lively quality of the account.

Example:

“Hon har gett en levande beskrivning av händelsen.”

A5—Findings:

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Lively	“lively”
Not lively	“not lively in how he described her”

A6 — Plausibility / realism

Evaluation of whether an account or the described course of events appears plausible, reasonable, realistic, probable, possible, or the opposite (*rimlig/orimlig, sannolik/osannolik, trovärdigt/otrovärdigt händelseförlopp*).

This concerns the court’s assessment of whether the account or described events could reasonably have occurred as described.

Boundary conditions:

- Code A6 when the court explicitly evaluates whether an account or described course of events is plausible, reasonable, realistic, or probable.
- Explicit mentions of difficult-to-explain elements belong to A9.
- If the court explicitly evaluates both the plausibility of an account and the presence of difficult-to-explain elements, code both A6 and A9.

Examples:

- “Den tilltalades uppgifter om vad som hänt under kvällen är i sig inte orimliga.”

- “Tingsrätten anser att målsägandens beskrivning av händelseförloppet framstår som rimlig.”
- “Den tilltalades förklaring till händelseförloppet framstår som osannolik.”
- “Berättelsen framstår som verklighetsfrämmande”

A6—Findings:

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Plausible	“plausible”, “rimlig”; “inte orimlig”
Implausible	“not plausible”; “ingen rimlig förklaring”; “orimlig”; “osannolik”
Partially plausible	“somewhat plausible”; “more plausible”
Partially implausible	"inte helt rimlig i några delar”

A7 — Errors / demonstrable incorrectness

Evaluation of whether an account contains demonstrable factual errors or inaccuracies, or whether such errors are explicitly considered absent.

This code applies only when the court specifically identifies information in an account as factually incorrect or explicitly evaluates the presence or absence of demonstrable errors.

Boundary conditions:

- Code A7 only when the court explicitly identifies a factual error in an account or explicitly states that the account contains no demonstrable factual errors.
- Do not code A7 merely because the court considers an account implausible, unreasonable, or unlikely. Such assessments belong under A6 (Plausibility / realism).
- Do not code A7 merely because an account is contradicted or unsupported by other evidence. Such assessments belong under B3 (Consistency / support from other evidence). **A7 requires an additional, explicit finding of factual incorrectness.**
- Do not code A7 merely because the court considers an account fabricated, deliberately misleading, or an *efterhandskonstruktion*. Such assessments belong under C2 (Fabrication / deliberate distortion).
- If the court explicitly evaluates both demonstrable factual incorrectness and another criterion, code both.

Examples:

- “Berättelsen verkar inte innehålla några påvisbara felaktigheter.”

- “Tingsrätten konstaterar att den tilltalades uppgift om tidpunkten för händelsen är felaktig.”
- “Målsägandens berättelse innehåller flera faktiska felaktigheter som har kunnat fastställas.”

A7—Findings:

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Present	"påvisbara felaktigheter”; “faktiskt felaktiga uppgifter”; “konstaterade sakfel”
Not present	"inga påvisbara felaktigheter”; “inga konstaterade sakfel”

A8 — Exaggeration

Evaluation of whether an account contains exaggerations or overstatements (*överdrifter*), or is explicitly described as being free from exaggeration.

This concerns whether the person exaggerates aspects of their account or describes events in an overstated manner.

Boundary conditions:

- Code A8 when the court explicitly evaluates whether an account contains exaggerations or overstatements, or notes their absence.
- Do not code A8 merely because the court describes an account as restrained (*återhållsam*) or balanced. Such assessments belong under A14 (Balanced account).
- Do not code A8 merely because a person provides information that is unfavorable to themselves or favorable to the other party. Such assessments belong under A14.
- If the court explicitly evaluates both exaggeration and the balanced or restrained nature of an account, code both A8 and A14.

Examples:

- “Berättelsen (…) ger inte sken av att innehålla överdrifter.”
- “Målsägandens berättelse har inte präglats av några överdrifter.”
- “Den målsägande verkar har överdrivit vad som inträffade.”

A8—Findings:

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Present	"innehåller överdrifter"; “har överdrivit vissa delar av händelsförloppet”
Not present	“no exaggerations”; “free from exaggeration”; “none”; “inga överdrifter”

A9 — Difficult-to-explain elements

Evaluation of whether an account contains particular elements or circumstances that the court explicitly considers difficult to explain, understand, or reconcile (*svårförklarliga inslag, svårt att förstå*), or whether such elements are absent.

This concerns specific aspects of an account that the court identifies as difficult to explain or understand, rather than a general evaluation of whether the account or described events are plausible.

Boundary conditions:

- Code A9 when the court explicitly identifies particular elements or circumstances in an account as difficult to explain or understand.
- Also code A9 when the court explicitly states that an account does not contain difficult-to-explain elements (*inga svårförklarliga inslag*).
- Do not code A9 merely because the court considers an account unreasonable, improbable, or implausible (*orimlig, osannolik*). Such assessments belong under A6.
- If the court explicitly evaluates both plausibility and difficult-to-explain elements, code both A6 and A9.

Examples:

- “Den [berättelsen] innehåller inga motsägelser eller svårförklarliga inslag.” *(Code A9 for “inga svårförklarliga inslag” and A13 for “inga motsägelser”.)*
- “Målsägandens berättelse innehåller flera svårförklarliga inslag.”
- “Det är svårt att förstå varför den tilltalade skulle ha agerat på det sätt som han beskrivit.”
- “För det fall målsäganden deltagit frivilligt och båda målsägandena agerat och njutit på det sätt den tilltalad beskrivit att de gjort framstår målsägandenas sinnesstämningar kort tid efter händelserna som obegripliga.”

A9—Findings:

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Present	“present”; “difficult to explain”; “difficult to understand”,

	“obegripliga”
Not present	“inga svårförklarliga inslag”; “no difficult-to-explain elements”; “no such moments”

A10 — Hesitation / uncertainty

Evaluation of hesitation, doubt, or uncertainty concerning important substantive parts of an account. This concerns whether the person provides a definite account of central events or expresses uncertainty about what occurred.

Boundary condition:

Do not use A10 for nervous physical presentation or body language. Such assessments belong under D4 (Body language / nonverbal demeanour).

Example:

- “Han har inte kunnat ge någon entydig redogörelse för vad som hände just då.”
- “Hon var osäker på de centrala delarna av händelseförloppet.”
- “Målsäganden verkar vara väldigt säkert på vad som hände.”

A10—Findings:

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Suggestion:

Present	“uncertain”; “uncertain, but irrelevant due to evidence”
Not present	“free from hesitation”

A11 — Spontaneity / free narrative

Evaluation of whether an account is provided spontaneously, freely, or without prompting, including whether the person can answer questions spontaneously when asked.

This concerns whether the person can recount events or provide relevant information without extensive questioning, prompting, or assistance, as well as whether they can respond readily to questions about the events.

Examples:

- “Målsäganden har lämnat en spontan och fri berättelse om händelseförloppet.”

- “Den tilltalade har på ett naturligt och spontant sätt kunnat besvara de frågor som ställts till honom.”
- “Målsägandens berättelse har inte kommit spontant, utan uppgifterna har framkommit först efter upprepade frågor.”
- “Den tilltalade har haft svårt att besvara frågor om händelseförloppet och har endast efter omfattande följdfrågor kunnat lämna närmare uppgifter.”

A11 — Findings

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Present	“free narration”; “spontan”; “kunde spontant besvara frågor”; “besvarade frågorna utan svårighet”
Not present	“not spontaneous”; “uppgifterna framkom först efter upprepade frågor”

A12 — Self-experienced

Evaluation of whether an account is presented in a manner suggesting that the person has personally experienced the events described.

This concerns whether the court considers the account to have the characteristics of a genuinely self-experienced narrative (*självupplevd*).

Boundary condition:

Do not code A12 merely because the court accepts an account as credible or reliable. The court must specifically evaluate whether the account appears self-experienced.

Example:

“Berättelsen framstår som självupplevd (…)”

A11—Findings:

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Self-experienced	“Self-experienced”; “is self-experienced”; “self experienced”
Not self-experienced	"verkar inte självupplevd”

A13 — Contradictions (former B1)

Evaluation of whether an account contains internal contradictions (*motsägelser*), meaning that different parts of the same account are inconsistent with one another.

This concerns contradictions within a single account, rather than differences between accounts given on separate occasions.

Boundary conditions:

- Code A13 when the court explicitly evaluates the presence or absence of internal contradictions within an account.
- Do not code A13 merely because the court describes an account as coherent or incoherent (*sammanhängande/osammanhängande*). Such assessments belong under A4.
- Differences between accounts given by the same person on separate occasions belong under B1 (Consistency across statements / occasions).
- Differences between accounts given by different people belong under B2 (Between-person consistency).
- If the court explicitly evaluates both coherence and internal contradictions, code both A4 and A13.

Examples:

- “Redogörelsen innehåller motsägelser.”
- “Målsägandens berättelse har inte innehållit några motsägelser.”
- “Den tilltalade har lämnat motstridiga uppgifter om händelseförloppet.”

A13 — Findings

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Contradictions	"innehåller motsägelser”; “motstridiga uppgifter inom samma berättelse”
No contradictions	“ingen motsägelser”; “berättelsen innehåller inte några motsägelser”

A14 — Balanced account

Evaluation of whether an account is presented in a balanced or restrained manner (*balanserad/återhållsam*), including whether the person provides information that is unfavorable to themselves or favorable to the other party.

This concerns whether the account is presented in a manner that does not exclusively favor the person's own position.

Boundary conditions:

- Code A14 when the court explicitly describes an account as balanced or restrained (*balanserad, återhållsam*).
- Code A14 when the court explicitly evaluates the fact that a person provides information that could reflect negatively on themselves or weaken their own position.
- Code A14 when the court explicitly evaluates the fact that a person provides information favorable to the other party.
- Do not code A14 merely because an account contains no exaggerations (*inga överdrifter*). Such assessments belong under A8 (Exaggeration).
- Do not infer that an account is balanced simply because the person mentions both positive and negative circumstances. The court must explicitly evaluate this characteristic as relevant to credibility or reliability.
- If the court explicitly evaluates both exaggeration and the balanced or restrained nature of an account, code both A8 and A14.

Examples:

- "Målsäganden har lämnat en återhållsam berättelse om händelseförloppet."
- "Målsäganden har även lämnat uppgifter som är till fördel för den tilltalade, vilket stärker tilltron till hennes berättelse."
- "Den tilltalade har också berättat om omständigheter som är till nackdel för honom själv, vilket talar för att hans uppgifter är tillförlitliga."

A14 — Findings

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Balanced	"återhållsam berättelse"; uppgifter som är till fördel för den tilltalade"
Not balanced	"ensidig framställning"; "inte återhållsam"

A15 — Memory/Recollection

Evaluation of a person's ability or inability to remember particular events or information, including whether their recollection or lack of recollection is considered reasonable, understandable, or expected under the circumstances.

This also includes assessments in which the court explicitly considers how a person's memory or lack of memory affects the possibility of evaluating their account.

Relevant circumstances may include the passage of time, intoxication, or other factors affecting recollection.

Boundary conditions:

- Code A15 when the court explicitly evaluates whether a person could reasonably be expected to remember or forget particular events or information.
- Code A15 when the court evaluates whether the amount or specificity of information recalled is reasonable given the circumstances, including the passage of time.
- Code A15 when the court explicitly states that an account cannot be evaluated, or can only be evaluated to a limited extent, because the person cannot remember relevant events.
- Do not code A15 merely because a person states that they cannot remember something. The court must explicitly evaluate the recollection or its implications for assessing the account.
- If the court explicitly evaluates both the level of detail and whether that level of recollection is reasonable, code both A1 and A15.

Examples:

- "Det framstår som anmärkningsvärt att den tilltalade inte minns en så central del av händelseförloppet."
- "Med hänsyn till den tid som förflutit är det naturligt att målsäganden inte längre minns alla detaljer."
- "Eftersom den tilltalade uppgett att han inte minns något av händelsen saknas förutsättningar att bedöma tillförlitligheten i hans uppgifter om händelseförloppet."

A15 — Findings

The finding section is used to provide further details for the respective codes. Below are the proposed response alternatives available and their respective examples.

Recollection as expected	"naturligt att inte minnas alla detaljer"; "minnesbilden är rimlig med hänsyn till den tid som gått"
Recollection not as expected	"anmärkningsvärt att inte minnas"; "orlimligt med hänsyn till den tid som gått"
Lack of memory	"saknas förutsättningat att bedöma uppgifterna eftersom den tilltalade inte minns händelsen", "uppgifterna kan endast bedömas i de deler som personen minns"

Clarification for Findings:

- **Recollection as expected / Recollection not as expected:** Use when the court evaluates whether remembering or forgetting particular information is reasonable or expected under the circumstances.
- **Lack of memory:** Use when the court explicitly considers how missing recollection limits or prevents an assessment of the person's account, without necessarily evaluating whether the memory loss itself is reasonable.
- If the court explicitly makes both an assessment of whether the recollection is expected and an assessment of how memory loss affects the evaluation of the account, record the code twice, including each of the findings.

B. Consistency and correspondence

B1 — Consistency across statements / occasions (former B2)

Evaluation of whether the same person's account changes or remains consistent across different occasions.

This includes additions, omissions, and changes between police interviews, hearings, or other occasions on which the person provided an account.

Boundary conditions:

- Code B1 when the court evaluates consistency between accounts provided by the same person on different occasions.
- Contradictions within a single account belong under A13 (Contradictions).
- Comparisons between the complainant's and defendant's accounts belong under B2 (Between-party consistency).

Example:

"Hon har i polisförhör lämnat olika uppgifter beträffande vissa detaljer kring gärningen och i några avseenden har även berättelsen hon lämnat i tingsrätten avvikit från uppgifterna i polisförhör."

B1—Findings:

The finding section is used to provide further details for the respective codes. Below are the proposed response alternatives available and their respective examples.

Consistent	"consistent"
Inconsistent	"not consistent, but not deemed a problem"; "not consistent, but explained by complainant", "anpassad sin berättelse"

B2 — Between-party consistency (former B3)

Evaluation of whether the complainant's and defendant's accounts correspond with or contradict one another, when the court uses this comparison as part of a credibility/reliability assessment.

This criterion concerns comparisons between the complainant's and defendant's versions of events, rather than comparisons involving witnesses or other evidence.

Boundary conditions:

- Code B2 when the court compares the complainant's and defendant's accounts as part of a credibility/reliability assessment.
- The court does not need to explicitly state that the correspondence or discrepancy strengthens or weakens credibility. It is sufficient that the comparison forms part of an identifiable credibility/reliability assessment.
- Do not code B2 when the court merely establishes that the complainant and defendant provide different versions of events without using this comparison as part of a credibility/reliability assessment.
- B2 applies exclusively to comparisons between complainants and defendants. Comparisons involving witness statements or other evidence belong under B3 (Consistency / support from other evidence).
- Attribute B2 to the person whose account the court is evaluating. If it is genuinely unclear whose account is being assessed, record the uncertainty in Notes rather than automatically assigning the code to one individual.
- Differences between accounts given by the same person on separate occasions belong under B1 (Consistency across statements / occasions).

Examples:

- "Den tilltalade har lämnat en utförlig och detaljerad berättelse. Hans uppgifter överensstämmer dock inte i alla delar med målsägandens berättelse."
  (Code A1 and B2 for the defendant.)
- "Målsägandens berättelse överensstämmer i huvudsak med den tilltalades uppgifter, vilket stärker tilltron till hennes redogörelse."
  (Code B2 for the complainant.)
- "Målsägandens och den tilltalades berättelser skiljer sig åt beträffande vad som inträffade i sovrummet."
  (Do not code B2 if this merely describes the different versions of events without forming part of a credibility/reliability assessment.)

B2—Findings:

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Consistent	“consistent”; “överenssstämmer med målsägandens berättelse”; “uppgifterne är förenliga med den tilltalades redogörelse”
Inconsistent	“not consistent”; “not consistent with complainant”; “different stories about timeline”; “överensstämmer int emed målsägandens berättelse”

B3 — Consistency / support from other evidence (former B4)

Evaluation of whether evidence external to a person’s account supports, corresponds with, contradicts, or undermines that account, when the court explicitly uses this relationship as part of a credibility/reliability assessment.

This includes witness testimony, forensic or technical evidence, medical evidence, and other evidence presented in the case.

Boundary conditions:

1. Inclusion rule

- Code B3 when the court evaluates whether an account is supported or contradicted by other evidence as part of a credibility/reliability assessment.
- Do not code B3 merely because the court presents evidence that happens to support or contradict an account. The evidence must be used as part of the court’s credibility/reliability assessment.
- The court does not need to explicitly state that each piece of evidence strengthens or weakens credibility, provided its evaluative function is clear from the surrounding credibility/reliability assessment.

2. Distinction from B2 and E2

- Comparisons between the complainant’s and defendant’s accounts belong under B2 (Between-party consistency).
- Comparisons involving witness testimony always belong under B3, never B2.
- When the court evaluates the fact or circumstances of disclosure itself, code E2 (Disclosure to others).
- If the court explicitly evaluates both the disclosure to a witness and the correspondence between the witness and complainant/defendant account, code both E2 and B3.

3. Multiple pieces of evidence

- Code each distinct piece of evidence that the court evaluates in relation to an account as a separate B3 assessment.
- When the court evaluates several witness statements collectively, code them as one B3 assessment.
- When the court evaluates different witness statements individually, code each separately.
- A general statement that an account is supported by the evidence does not create an additional B3 assessment when it merely introduces or summarizes specific evidence evaluated in the same assessment.

Examples:

- "Målsägandens berättelse får stöd av den övriga utredningen"
  (If this is not followed by examples of what said evidence is, code B3 for this statement)
- "Målsägandens berättelse får stöd av den övriga utredningen. Hennes uppgifter stöds bland annat av DNA-bevisningen och vittnenas berättelser."
  (Code one B3 assessment for the DNA evidence, none for the introductory statement, as it is followed by concrete examples)
- "Målsägandens uppgifter överensstämmer med vad vittnet X har berättat om händelsen."
  (Code B3 for the complainant.)
- "Den tilltalades uppgifter motsägs av den tekniska bevisningen."
  (Code B3 for the defendant.)
- "Vittnena A och B har båda lämnat uppgifter som ger stöd åt målsägandens berättelse."
  (Code one B3 assessment when the court evaluates the witness testimony collectively.)
- "Målsäganden har berättat att hon efter händelsen kontaktade sin väninna. Vittnet har bekräftat att målsäganden berättade om händelsen och har återgett uppgifter som överensstämmer med målsägandens berättelse i rätten."
  (Code B3 for the consistency between the complainant's account and the witness testimony. Also code E2 for the diclosure)

B3—Findings:

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Supported	"supported"; "consistent with evidence"; får stöd av vitnessuppgifter"
Not supportive	"not supported"; "not consistent with evidence"; "motsägas av den tekniska bevisningen"
Partially supported	"slight support"; "får visst stöd av utredningen"

Partially not supported	"får i delar inget stöd av utredningen”
Inconclusive	“bevisningen ger varken stöd för eller emot uppgifterna”

C. Person motivations

C1 — Motive to lie

Evaluation of whether a person has, or lacks, a particular motive, interest, or incentive to provide false or misleading information.

This concerns whether the person has a reason to lie or distort their account, rather than whether the court considers that they have actually been dishonest.

Potential motives include revenge, personal conflict, financial interests, self-protection, avoiding responsibility, or protecting another person.

The code applies to both complainants and defendants.

Boundary conditions:

- Code C1 when the court explicitly evaluates whether a person has or lacks a motive or incentive to lie or distort their account.
- The court does not need to conclude that the person has actually lied. C1 concerns the existence or absence of a possible motive.
- Do not automatically code C1 merely because the defendant has a general interest in avoiding conviction. The court must explicitly evaluate this motivation as relevant to credibility/reliability.
- Do not code C1 merely because the court considers an account fabricated, deliberately misleading, or an *efterhandskonstruktion*. Such assessments belong under C2 (Fabrication / deliberate distortion).
- Arguments about possible motives raised by the defense, prosecution, or other parties should only be coded when the court itself evaluates them as part of its credibility/reliability assessment.
- If the court explicitly evaluates both a possible motive to lie and whether the person has fabricated or deliberately distorted their account, code both C1 and C2.

Examples:

- “Det har inte heller framkommit något som ger anledning att tro att hon medvetet skulle lämna felaktiga uppgifter om de aktuella händelserna.”
- “Mot bakgrund av den tidigare konflikten mellan parterna har målsäganden kunnat ha ett motiv att lämna felaktiga uppgifter om den tilltalade.”

- “Försvaret har gjort gällande att målsäganden haft anledning att lämna falska uppgifter på grund av en tidigare konflikt. Tingsrätten anser dock att det inte finns något stöd för att hon skulle ha haft ett sådant motiv.”
- “Den tilltalade har ett intresse av att minska sitt straffansvar, vilket måste beaktas vid bedömningen av hans uppgifter.”

C1—Findings:

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Motive to lie	"haft anledning att lämna felaktiga uppgifter”; “motiv att lämna falska uppgifter”
No motive to lie	“saknas anledning att lämna felaktiga uppgifter”
Motive to lie (others)	"försvaret har gjort gällande att målsäganden hat ett motiv att ljuga” (when the court agrees with this assessment)
No motive to lie (others)	“försvarets påstående om motiv att ljuga saknar stöd”

Clarification of Findings:

- **Motive to lie / No motive to lie**
  Code this when the court does not explicitly state that the defense or someone else has proposed this motive.

- **Motive to lie / No motive to lie (others)**
  Code this when the court explicitly states that the defense or someone else has proposed this motive.

C2 — Fabrication / deliberate distortion

Evaluation of whether a person appears to have fabricated, deliberately distorted, or intentionally adapted their account to present a false or misleading version of events.

The code also includes assessments in which the court explicitly rejects the possibility that an account has been fabricated or deliberately distorted.

Unlike C1, C2 concerns **whether the court considers the person to have actually fabricated or deliberately distorted their account**.

The code applies to both complainants and defendants.

Boundary conditions:

- Code C2 when the court explicitly evaluates whether an account is fabricated, deliberately misleading, or an *efterhandskonstruktion*.

- Code C2 when the court evaluates whether a person has intentionally adapted their account to fit other evidence, conceal information, or present a misleading version of events.
- Also code C2 when the court explicitly concludes that there are no indications of deliberate fabrication or dishonesty.
- Do not code C2 merely because the court identifies a possible motive to lie or a lack thereof. Such assessments belong under C1 (Motive to lie).
- Do not code C2 merely because an account is considered incorrect, inconsistent, implausible, or unreliable. The court must explicitly evaluate possible fabrication or deliberate distortion.
- Do not infer dishonesty merely because the court accepts the complainant's account, rejects the defendant's account, or finds the defendant guilty. Such conclusions do not independently establish an assessment of deliberate fabrication.
- If the court explicitly evaluates both a motive to lie and actual or suspected fabrication, code both C1 and C2.

Examples:

- "Den tilltalades förklaring framstår som en efterhandskonstruktion."
- "Tingsrätten anser att den tilltalade har anpassat sin berättelse efter de uppgifter som framkommit under utredningen."
- "Målsägandens uppgifter framstår i vissa delar som tillrättalagda för att passa den övriga bevisningen."
- "Det finns inget som tyder på att den tilltalade medvetet har lämnat oriktiga uppgifter.
- "Berättelsen framstår dock i vissa delar som tillrättalagd och anpassad på så sätt att den utelämnar detaljer som är till nackdel för honom."
  (Code C2 for "tillrättalagd" and A14 for "utelämnar detaljer som är till nackdel för honom".)

C2 — Findings

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Fabrication	"efterhandskonstruktion"; "tillrättalagd beröttelse"; "anpassat sin berättelse efter bevisningen"
No fabrication	"ingen fterhandskonstruktion"; "inte medvetet lömnat oriktiga uppgifter"

D. Overall credibility, presentation, demeanour and affect

D1 — Unelaborated credibility assessment

The court states that a person or their account is credible, reliable, truthful, authentic, or the opposite, without articulating another credibility/reliability criterion that explains that assessment.

The defining feature is that the credibility assessment itself is expressed without an articulated underlying criterion explaining why.

Boundary conditions:

- Code D1 when the court makes a credibility/reliability assessment without providing an identifiable criterion explaining it.
- If the court provides an overall conclusion following an assessment involving other criteria, code D2 (Overall / concluding credibility judgment).
- Do not code D1 merely because the court reaches a guilty or not-guilty verdict. The court must evaluate the credibility or reliability of a person's account.

Example:

- ”Måläganden har gjort ett trovärdigt intryck.”
- “Det saknas anledning att ifrågasätta hennes uppgifter om att hon sover djupt och känner sig berusad när hon tar sömntabletter”

D1—Findings:

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Credible	“credible”; “tillförlitlig”; “statement is credible”
Not credible	"inte tillförlitlig”

D2 — Overall / concluding credibility judgment

The court gives an overall credibility/reliability conclusion after assessing the person or their account through one or more other credibility/reliability criteria. The underlying criteria should still be coded separately when present.

Boundary conditions:

- Code D2 when the court explicitly draws an overall conclusion about credibility or reliability based on its assessment of other criteria.
- Do not code D2 merely because the court reaches a guilty or not-guilty verdict. The conclusion must concern the credibility or reliability of a person's account.
- When the court makes an unelaborated credibility assessment without identifiable supporting criteria, code D1 instead.
- Code the underlying criteria separately when they are explicitly evaluated.

Example:

"(...) att målsägandens utsaga inte innehåller alla de kännetecken som kan innebära att en utsaga bedöms trovärdig"

D2—Findings:

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Credible	"credible"; "trovärdigt";
Not credible	"Not credible / not enough to discredit the complainants version of events"

D3 — Emotional expression

Definition:

Evaluation of a person's emotional expressions, emotional state, or emotional reactions as relevant to the credibility or reliability of their account.

This includes expressions of distress, crying, fear, anger, emotional restraint, numbness, or the absence of expected emotional reactions.

Emotional expressions are included regardless of when they occurred, whether during testimony or after the alleged event, and regardless of whether they were observed directly by the court or reported by witnesses.

Boundary conditions:

- Code D3 whenever the court evaluates a person's emotional expressions or reactions as part of a credibility/reliability assessment.
- This includes emotional reactions observed by witnesses, such as a complainant crying or appearing distressed after the alleged event, as long as they are mentioned as part of a credibility/reliability assessment.
- Do not code emotional reactions under E1 (Post-event behaviour). All evaluations of emotional expressions belong under D3, regardless of when they occurred.
- Do not code D3 merely because emotional reactions are described. The court must use them as part of its credibility/reliability assessment.
- When a witness describes emotional reactions that the court evaluates as supporting or undermining an account, code D3 rather than B3 merely because the information originates from witness testimony. If the court separately evaluates the consistency between the witness's account and the person's account, B3 may also apply.

Examples:

- "Det var uppenbart att det var svårt för målsäganden att berätta om vad hon upplevt framför domstolen."
- "Vittnet har berättat att målsäganden var mycket upprörd och grät efter händelsen."
- "Målsäganden har berättat om händelsen utan att visa några känslor."
- "Vittnenas uppgifter om att målsäganden var märkbart skärrad efter händelsen stärker tilltron till hennes berättelse."

D3—Findings:

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

As expected	"svårt att berätta"; "grätt och var upprörd efter händelsen"; "visade starka känslor vid förhöret"
Not as expected	"visade inga känslor"; "verkade oförändrat efter händelsen"

D4 — Body language / nonverbal demeanour

Evaluation of a person's nonverbal or paraverbal presentation as relevant to the credibility or reliability of their account. This includes gaze, gestures, facial expressions, bodily movements, tone of voice, nervousness, or apparent ease, **when these are evaluated through physical or paraverbal presentation rather than emotional expression**.

Boundary conditions:

- Code D4 when the court evaluates a person’s body language or mannerisms as part of a credibility/reliability assessment, regardless of when they occurred.
- Emotional expressions or states, including fear, distress, or nervousness evaluated as an emotion, belong under D3 (Emotional expression).
- Actions following the alleged event, such as contacting the police or maintaining contact with the other party, belong under E1 (Post-event behaviour).
- Do not code D4 merely because body language is described. It must form part of a credibility/reliability assessment.

Examples:

- “Den tilltalade undvek ögonkontakt under förhöret.”
- “Målsägandens lugna och naturliga kroppsspråk stärkte tilltron till hennes berättelse.”

D3—Findings:

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

As expected	“målsägandens kroppsspråk framstod om naturligt”
Not as expected	"den tilltalade undvikade ögonkontakt under förhöret”

E. Surrounding behaviour and indirect support

E1 — Post-event behaviour

Definition:

Evaluation of a person’s actions or behaviour following the alleged event as relevant to the credibility or reliability of their account.

This includes whether the person acted in a manner that the court considers consistent or inconsistent with what would be expected under the circumstances.

Relevant behaviour may include reporting the alleged event to the police, seeking assistance, leaving or remaining at a location, maintaining or avoiding contact with the other party, or apologizing after the event.

Boundary conditions:

- Code E1 when the court explicitly evaluates a person’s post-event actions or behaviour as part of a credibility/reliability assessment.
- The code applies to both complainants and defendants.

- Do not code E1 merely because post-event behaviour is described. The court must evaluate the behaviour as relevant to credibility/reliability.
- Emotional expressions or reactions, such as crying, distress, or fear, belong under D3 (Emotional expression).
- Disclosure of the alleged event to friends, family members, or other personal contacts belongs under E2 (Disclosure to others), even when the disclosure involves seeking assistance.
- Reporting the alleged event to the police or seeking assistance from authorities belongs under E1.

Examples:

- “Målsäganden kontaktade polisen direkt efter händelsen.”
- “Tingsrätten anser att det förhållandet att målsäganden inte lämnade lägenheten efter händelsen inte påverkar tillförlitligheten i hennes uppgifter.”
- “Målsäganden fortsatte att träffa den tilltalade efter händelsen.”
- “Den tilltalade kontaktade målsäganden efter händelsen och bad om ursäkt, vilket enligt tingsrätten inte är förenligt med hans uppgifter om vad som inträffat.”

E1—Findings:

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

As expected	“kontaktade polisen direkt efter händelsen”; “lämnade platsen så snart hon kunde”; “agerade på ett sätt som var förenligt med hans uppgifter”
Not as expected	“lämnade inte lägenheten”; “bad om ursäkt”; “fortsatte träffa den tilltalade”

Clarification for Findings:

The categories capture whether the court considers the person’s post-event behaviour consistent or inconsistent with what it would expect under the circumstances.

These expectations may differ depending on whose account is being assessed:

- **Complainant:** Whether the behaviour is considered consistent or inconsistent with what the court expects from someone who has experienced the alleged event. For example, reporting the incident, seeking help, leaving the location, or maintaining contact with the defendant.
- **Defendant:** Whether the behaviour is considered consistent or inconsistent with what the court expects from someone who is innocent of the alleged offence. For example, whether subsequent contact, apologies, or other actions are considered consistent with the defendant’s account.

E2 — Disclosure to others

Definition:

Evaluation of whether, when, or how a person disclosed the alleged event to others, particularly friends, family members, acquaintances, or other people in their personal environment, when the court uses this disclosure as part of a credibility/reliability assessment.

This includes evaluations of whether the person disclosed the event, refrained from disclosing it, or delayed disclosure.

Boundary conditions:

- Code E2 when the court evaluates the fact that a person disclosed, or did not disclose, the alleged event to someone in their personal environment as part of a credibility/reliability assessment.
- Disclosure to friends, family members, or other personal contacts belongs under E2, even when the person disclosed the event because they needed assistance.
- When the court evaluates whether the person's account is consistent with what a witness reports that the person previously disclosed, code B3 (Consistency / support from other evidence).
- If the court explicitly evaluates both the disclosure itself and the correspondence between the accounts, code both E2 and B3.
- Reporting the alleged event to the police or contacting authorities for assistance belongs under E1 (Post-event behaviour), rather than E2.
- If the court separately evaluates the disclosure and the person's broader post-event behaviour, both E1 and E2 may apply.

Examples:

- "Målsäganden berättade kort efter händelsen för sin väninna vad hon hade varit med om."
- "Målsäganden har inte berättat för någon närstående om händelsen förrän långt senare."
- "Att målsäganden redan samma kväll berättade för sin syster om händelsen talar enligt tingsrätten för att hennes uppgifter är tillförlitliga."
- "Målsäganden berättade för sin vän om händelsen eftersom hon behövde hjälp."

E2—Findings:

The finding section is used to provide further details for the respective codes. Below are the response alternatives available and their respective examples.

Disclosed	“berättade för vittne x”; berättade för sin syster”
Not disclosed	“berättade inte för någon”; “valde att inte berätter om händelsen”